

I. Request

1. The Secretary of State for Justice requested on August 12, 2024, that the National Data Protection Commission (CNPD) issue an opinion by August 28, 2024, regarding the draft ordinance that regulates electronic communications made between judicial courts, administrative and tax courts, the Public Prosecutor's Office, and the Institute of Legal Medicine and Forensic Sciences (hereinafter IMLCF) within the scope of examinations and expert assessments requested from the services of the latter in jurisdictional processes (hereinafter Draft Ordinance).
2. The request for an opinion was not accompanied by any impact study on the protection of personal data.
3. The CNPD issues opinions within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of number 1 of article 57, paragraph b) of number 3 of article 58, and number 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, number 2 of article 4, and paragraph a) of number 1 of article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the domestic legal order (hereinafter LERGPD).

II. Analysis

i) The enabling law, the object, and the scope of the Draft

4. The Constitution of the Republic enshrines in its article 112, number 7 that “Regulations must expressly indicate the laws they aim to regulate or that define the subjective and objective competence for their issuance;”
5. The present Draft Ordinance begins by stating as enabling legislation the provisions of number 5 of article 132 of the Code of Civil Procedure, approved by Law No. 41/2013, of June 26 (hereinafter CPC), in its current wording, where it is stated that “Communications between courts or enforcement agents and public entities and other legal persons that assist the courts in the context of judicial processes may be made electronically, through the sending of structured information and the interoperability between the information system supporting the activity of the courts and the information systems of the aforementioned entities, as provided for in an ordinance by the members of the Government responsible for the area of justice and the public entity in question.”
6. It then also refers to numbers 4 and 5 of article 219 of the CPC, from which we highlight: paragraph a) of the first normative segment which states that “When citations and notifications are made electronically: They may be made through the sending of structured information regarding the identification of the process and the interoperability between the information system supporting the activity of the courts and the information system of the citing or notifying party;”; paragraph a) of the second normative segment where it establishes that “Citations and notifications addressed to legal persons may be made electronically under the terms of the previous number, when: In the case of a public entity of the direct or indirect Administration of the State, this is provided for in an ordinance by the members of the Government responsible for the area of justice and the public entity in question;”.
7. Finally, it mentions article 23 of the Code of Procedure in Administrative Courts, approved by Law No. 15/2002, of February 22, in its current wording, through which it is stated that: “The provisions of the civil procedural law regarding the delivery or sending of procedural pieces, duplicates of pleadings, and copies of documents submitted, as well as regarding the performance of citations and notifications, are subsidiarily applicable to the administrative process.”
8. Thus, the literal and combined reading of the cited enabling legislation seems to confine the scope of application of the present Draft Ordinance to civil and administrative processes.
9. However, article 1 of the Draft Ordinance outlines as its object and scope the “examinations and expert assessments requested from the services of INMLCF in jurisdictional processes,” which may encompass, for example, criminal processes and labor processes, particularly concerning workplace accidents.

10. As we can see, the cited enabling law falls short of the regulatory aims of the Draft Ordinance, potentially raising doubts regarding its legal basis in light of data protection.

11. Moreover, the Code of Civil Procedure integrates the gaps of the Code of Criminal Procedure (article 5), as well as the Code of Labor Procedure (paragraph a), number 2 of article 1).

ii) The legal design of the Draft and its sustainability

12. The normative legal framework regarding the protection of personal data establishes the relevant legal framework for the assessment of the present Draft Ordinance, particularly concerning the principles related to the processing of personal data, with emphasis on the Charter of Fundamental Rights of the European Union (hereinafter CDFUE) and the General Data Protection Regulation.

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13. Thus, according to Article 8 of the Charter of Fundamental Rights of the European Union, the processing of personal data must be carried out with strict respect for the rights, freedoms, and guarantees of individuals, particularly the right to the protection of personal data (principle of legality).

14. Regarding the GDPR, it establishes in Article 5, paragraph 1 that personal data must be: i) Subject to lawful, fair, and transparent processing (lawfulness, fairness, and transparency); ii) Collected for specified, explicit, and legitimate purposes, and not processed in a manner incompatible with those purposes (purpose limitation); iii) Adequate, relevant, and limited to what is necessary for the purposes for which they are processed (data minimization); iv) Accurate and kept up to date where necessary, and all reasonable measures must be taken to ensure that inaccurate data is erased or rectified without delay (accuracy of data); v) Kept in a form which permits identification of data subjects only for as long as is necessary for the purposes for which the data are processed (storage limitation); vi) Processed in a manner that ensures their security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality).

15. Finally, the GDPR, through Article 5, paragraph 2, establishes the requirement that the data controller must implement measures that allow them to demonstrate that the processing of personal data is carried out in accordance with the principles set out (accountability).

16. The electronic communications listed in Article 2 of the Draft Order necessarily include personal data, such as those related to health, and it is certain that the latter corresponds to sensitive data, classified as a special category (Article 9 GDPR).

17. However, in the processing of the electronic communications provided for in paragraph 3 of Article 2 of the Draft Order, there is no explicit provision for any legal tracking of the participants in the electronic communications (judicial officer/technician of INMLCF), namely through their identification, which means that the subsequent duty of confidentiality of these participants may not have any effectiveness.

18. This is despite paragraph 2 of the same Article 3 of the Draft Order referring that "The information systems referred to in the previous number automatically carry out the electronic records of the communications made under this order, including their date and time, authors, and the process in which they occurred" – with our emphasis.

19. The designation "authors" is associated in legal terminology with procedural subjects, especially since in the subsequent paragraph 3 of the same Article 3 reference is made to "users."

20. Accordingly, if the reference to "authors" is intended to assign the meaning of creators of the electronic communication, this designation should be replaced with "judicial officer or intervening technician," dispelling any doubts.

21. In turn, paragraph 5 of Article 2 of the Draft Order merely establishes that "The technical and functional specifications for interoperability between the information systems referred to in paragraph 1 are defined by protocol to be established between the Institute of Financial Management and Justice Equipment, I.P. (IGFEJ) and INMLCF."

22. Thus, no technical or functional specifications regarding the aforementioned interoperability have been established, which could be included in this Draft Order, given its regulatory nature.

23. It is worth recalling that the protocol to be established between the Institute of Financial Management and Justice Equipment, I.P. (IGFEJ) and INMLCF referenced in Article 2, paragraph 5 of

the Draft Order is subject to prior opinion from the CNPD.

24. Furthermore, it should be noted that the subsequent Article 3 of the Draft Order, under the heading "Security Measures," does not provide specific details about the respective technical or operational measures to be implemented to ensure the confidentiality of the data.

25. Thus, in the absence of the aforementioned specific information regarding interoperability, as well as about the effective measures intended to ensure the protection of personal data, the CNPD cannot proceed with a substantiated technical analysis.

iii) The possible impact of the Drafts on the protection of personal data

26. The CNPD also draws attention to the observance of the provisions of paragraph 4 of Article 18 of Law No. 43/2004, of August 18 (Law on the Organization and Functioning of the National Data Protection Commission), according to which "Requests for opinions on legal and regulatory provisions in preparation must be sent to the CNPD by the holder of the body with legislative or regulatory power, accompanied by the respective impact study on the protection of personal data."

27. Thus, such omission compromises the issuance of a substantiated and sustainable opinion regarding the validity and reliability concerning the probable risks arising from the processing of personal data contained in this Draft Order.

III. CONCLUSIONS

28. In accordance with the terms and grounds set forth above, the CNPD issues this opinion, recommending:

- a) The specification of the enabling law in accordance with Article 1 of the Draft Order;
- b) The explicit identification of the participants in the electronic communications (judicial officer or technician), namely through their identification;

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- c) The establishment of technical or functional specifications regarding the aforementioned interoperability of the systems;
- d) The necessity to establish security mechanisms concerning the processing of data and interoperability listed in Article 3 of the Draft Ordinance;
- e) The completion of the respective impact study on the protection of personal data.

Lisbon, August 28, 2024

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